

These Online Payment Terms (Terms) apply to the use of the Online Payment Services (the Services) for the payment of invoices issued by the Commonwealth (as represented by the department). These Terms form a legal and binding contract between you and the department. It is your responsibility to read them carefully.

These terms may be amended by the department at any time that the department determines necessary, with or without notice. It is your responsibility to read these Terms each time you use the Services. The department uses the services of a third party, IP Solutions International Pty Ltd (third party), to process online payments. By using the Services, you also agree to comply with the [terms and conditions of IP Solutions International Pty Ltd](#).

The department recommends you retain a copy of the transaction for the purposes of record keeping.

[expand all]

Purpose

You may use the Services for the sole purpose of making payments to the Commonwealth of Australia as represented by the department, provided that you do not damage or disrupt the Services or the operation of the Services in any way.

Your warranties

You warrant that:

- Your age is 18 or over;
- You have authority to validly accept the Terms;
- You will comply with these Terms;
- If applicable, you will pay the credit card issuer all charges incurred in the use of the Services; and
- The information supplied by you is true and accurate.

Payment

- Visa, MasterCard and American Express credit cards are the only accepted credit cards for payment;
- Payment must be made in Australian currency (AUD);
- You must pay the amount stated on the invoice in full by the due date stipulated on the invoice, noting that if the invoice is not paid by this due date [late payment penalties](#) will be incurred;
- A payment cannot be cancelled once it has been made;
- You will receive a detailed summary screen which will verify the transaction. It is your responsibility to verify that the details you have entered are correct before confirming the transaction. The department takes no responsibility for transactions which have been incorrectly entered.

- Once you confirm the transaction, you will receive a transaction complete screen. This screen does not deem the payment has been made. Payment will be deemed to have been made when the department has successfully made a charge against the credit card which you have used to make the payment;

Privacy

- Personal information means information or an opinion about an identified individual, or an individual who is reasonably identifiable. The collection of personal information by the department in relation to the use of the Services is required for the purposes of processing invoice payments and related purposes. If the relevant personal information requested by the use of the Services is not provided by you, the department will be unable to process the payment of your invoice. The department will collect, use, disclose and store your personal information in accordance with its Privacy Policy which can be found at [Privacy](#).

In the event of a dispute

- If you dispute the outstanding amount on your account, you can contact the department by:
 - - Telephone: 1800 647 531
 - Post:
GPO Box 858
Canberra City ACT 2601
Australia
 - Email: [AR Helpdesk](#)
 - You must provide details of the invoice number and evidence of payment when you contact the department to dispute the outstanding amount on your account in accordance with this clause 5.
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Security

You acknowledge and agree that:

- the payment is made through a third party website;
- you are responsible for keeping the computer you are making the payment from free from viruses and other malicious programs;
- Internet transmissions are not completely secure and that any information provided by you may be intercepted or read by an unauthorised third party; and
- the department will not be liable for the interception or stealing of any data or other unauthorised access to information provided by you in conjunction with using the Services.

Limitation of the department's liability

To the extent permitted by law, the Commonwealth (as represented by the department) does not accept liability for any damage, loss (both direct or indirect and consequential or non-consequential) or costs (including legal costs), of any kind which may be suffered or incurred by you arising from the use of the Services.

Disclaimer

- No warranty or guarantee is provided by the department in relation to the Services and/or that your use of the Services will be free of errors, immediate, free from virus and/or continuously available or that the information provided through the Services will be complete and correct.
- The right to suspend, amend or cancel the Services either temporarily or permanently is reserved by the department.

Conflict between Terms and Conditions

- In the event of an inconsistency between these Terms and the terms and conditions of IP Solutions International Pty Ltd, the prevailing term will be determined in the following order:
 - These online payment terms
 - The terms and conditions of IP Solutions International Pty Ltd

Indemnity

- You agree to indemnify the department for any loss, cost or expense suffered or incurred by the department arising from:
 - - You breaching your obligations under these Terms;
 - Your intentional misuse of the Services;
 - Your negligent acts or omissions; or
 - Any claim brought against the department by a third party in relation to your use of the Services.
 - Your liability to indemnify the department under clause 10(a) will be reduced proportionately to the extent that any act or omission involving fault on the part of department or a department official contributed to the relevant cost, liability, loss, damage or expense.
 - The right of the department to be indemnified under clause 10(a) is in addition to, and not exclusive of, any other right, power or remedy provided by law.
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Governing Law

These Terms are governed by the law of the Australian Capital Territory. The Courts of the Australian Capital Territory have exclusive jurisdiction over any matter in connection with the Services and these Terms.

Source: <https://www.agriculture.gov.au/about/payments/terms-conditions>